

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.14124 of 2023

Md. Ismail Hossain

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Gazi Towhidul Islam, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

... For the State.

Heard and Judgment on 28.02.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Mohanpur Police Station Case No.22 dated

29.04.2022 corresponding to G.R. Case No.101 of 2022 (Mohanpur) under Sections 8/9/10/12/13 of the Santras Birodhi Ain, 2009 (as amended in 2013), now pending in the Court of learned Chief Judicial Magistrate, Rajshahi and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the petitioner Md. Ismail Hossain was arrested on 29.04.2022 at 4.30 A.M. by police from the Women Technical College at Bagmara, Rajshahi and from his possession 24 pieces of leaflets of proscribed militant organization Jamayatul Mujahidin Bangladesh were recovered and seized. It has been alleged that the petitioner was a member of above militant organization.

Mr. Gazi Towhidul Islam, learned Advocate for the petitioner submits that the petitioner is in custody in connection of this case since 29.04.2022 but the investigation of the case could not be concluded. No arms or exclusive substance were recovered from the possession of the petitioner nor there is any record of past criminal activity against the petitioner.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State raises objection against granting of bail to the petitioner at this point of time.

We have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

As mentioned above the petitioner was arrested on 29.04.2022 but the investigation of this case has not yet been concluded. On consideration of above materials on record we find substance in this application and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute.

Let accused-petitioner Md. Ismail Hossain, son of late Riaz Uddin Sai be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Rajshahi.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER